

WELLS FARGO BANK, N.A. v. ANDREW CRONIS
Case No. CL24-08776

Motion to Vacate Dismissal Under CCP § 664.6 and Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

The court denied this very same motion on May 21, 2026 without prejudice to renew on the basis that it was not personally served on Defendant CRONIS who has never appeared in this action. There is no change of circumstances and no good cause to refile the same motion with the same procedural challenges.

The following is the ruling issued May 21, 2026:

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Defendant never appeared in this action until an “appearance” via a stipulation filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains no information regarding Defendant’s contact information including telephone, email or address.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant never filed a responsive pleading in this action identifying an address of record. The court is not satisfied that the mailing address Plaintiff used for service of notice of motion provides notice and/or satisfies due process.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.

There is no good cause to refile a motion that was previously denied with no change in circumstances.

An Order to Show Cause shall issue to the managing partner(s) of Collection at Law, Inc. APLC why sanctions in the amount of \$1,000 should not be imposed for the frivolous refiling of a previously denied motion with no change in circumstances. Personal appearance of a managing partner of Collection at Law. Inc. is required. No remote appearances are authorized. A response to the Order to Show Cause shall be filed 15 calendar days prior to the hearing.

The hearing on the ORDER TO SHOW CAUSE TO PLAINTIFF’S COUNSEL is set on **October 15, 2026 at 8:30 a.m. in Department 8.**
